

fil the condition of not being an eldest son.' In *Livesey v. Livesey* the class was to be ascertained when the youngest child attained twenty-one, and there was a direction that the son who was or should become an eldest son should not take anything under the devise or bequest, and consequently the person who filled the character of eldest son at that period could not take. Unless the testator has said, 'I do [*394] not intend a person * to take any interest who at the time of *distribution* fills the character of eldest son,' I think the character of eldest son is to be ascertained when the interest becomes vested" (a).

Thirdly. At what time the portions vest.

1. **General rule as to vesting.** — In every well drawn settlement whether by deed or will, the period of vesting is clearly expressed upon the face of the instrument itself, and the usual period is as to sons at twenty-one, and as to daughters at twenty-one or marriage, with a declaration that the portions are not to be payable until after the death of the tenants for life, unless with the consent of the tenants for life. It often happens, however, that the language of the instrument is contradictory or inconsistent, or in some way ambiguous, and in order not to defeat the probable intention a peculiar and important canon of construction has been established; and it is this — Where a parent or a person standing *loco parentis* provides portions for children, the strong presumption is that he means to provide portions for all such children as may live to require it, *i.e.* for sons who attain twenty-one, and daughters who attain twenty-one or marry. If, therefore, the language of the instrument be uncertain but is capable of the construction, that sons at twenty-one, and daughters at twenty-one or marriage, shall take a vested interest, the Court will so decide it by force of the presumption.

Thus, in *Howgrave v. Cartier* (b) a fund was vested in trustees upon trust for Peter for life, subject to 200*l.* pin-money to Elizabeth his intended wife, and if Elizabeth should die before Peter, "without *leaving* any child or chil-

(a) 25 Beav. 656.

(b) 3 V. & B. 79.